

24STCV27659 24STCV27659

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV27659 Hearing Date: August 27, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING DATE: August 27, 2026 TRIAL DATE: Not set.

CASE: S David Sedaghat v. Jerry Roles, et al.

CASE NO.: 24STCV27659

MOTION TO DISMISS/MOTION FOR JUDGMENT ON THE PLEADINGS/NON-STATUTORY MOTION FOR JUDGMENT ON THE PLEADINGS

DEMURRER TO SECOND AMENDED COMPLAINT

MOTION TO STRIKE PORTIONS OF SECOND AMENDED COMPLAINT

MOVING PARTY/PARTIES: Defendants Jonathan J. Wernick and SSCTOC (Assignment for the Benefit of Creditors) LLC

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

· Correct Address: Yes

· Served electronically on June 23, 2026 for a hearing date of August 27, 2026.

CASE HISTORY:

- October 22, 2024: Complaint filed.
- December 18, 2024: Notice of removal to federal court filed.
- March 18, 2025: Notice of remand from federal court filed.
- February 17, 2026: First Amended Complaint filed.
- May 27, 2026: Second Amended Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff S David Sedaghat ("Plaintiff"), as a self-represented litigant, initiated this action based on the alleged wrongful death of his father while his father was a resident of a long-term care facility. Defendants Jonathan J. Wernick and SSCTOC (Assignment for the Benefit of Creditors) LLC ("Defendants") caption their motion as a motion to dismiss or motion for judgment on the pleadings or non-statutory motion for judgment on the pleadings. This is Defendants' second motion to dismiss. In its order of May 6, 2026, this Court denied Defendants' first motion to dismiss for failure to cite authority in the notice of motion on which the Court could grant the relief Defendants sought. (May 6, 2026 Minute Order.) Defendants then filed this second motion. As authority for the motion to dismiss, Defendants cite Code of Civil Procedure section 581, subdivision (m). Defendant also copies, verbatim, section 1004 of chapter five of Witkin's California Procedure, Sixth Edition. The Court cannot grant Defendants' motion based on authority other than the authority Defendants cite in their notice of motion. (See Code Civ. Proc., § 1010; Cal. Rules of Court, rule 3.1110, subd. (a); *People v. American Sur. Ins. Co.* (1999) 75 Cal.App.4th 719, 726.) Per Code of Civil Procedure section 581, subdivision (m), the Court has inherent authority to dismiss actions. (Code Civ. Proc., § 581, subd. (m).) "A court has inherent power by summary means to prevent an abuse of its processes and peremptorily to dispose of causes of action and defenses that are sham, frivolous or wholly vexatious." (In re King's Estate (1953) 121 Cal.App.2d 765, 774.) The Court may exercise this power "to stop vexatious litigation, clearly without merit, and burdensome to the courts as well as to defendants." (*Crowley v. Modern Faucet Mfg. Co.* (1955) 44 Cal.2d 321, 324-325.) In support of the motion to dismiss, Defendants argue that Plaintiff's claims fail, and that Plaintiff has asserted the same claims against Defendants in prior actions. Plaintiff's failure to state a claim does not amount to unusual circumstances in which the Court should exercise its inherent authority to dismiss the action. Multiple procedural vehicles are available to Defendants to raise Plaintiff's failure to state a claim. Likewise, multiple procedural vehicles are available to Defendants to raise Plaintiff's prior actions as bars to this current action. Accordingly, the motion to dismiss is denied. The Court considers the motion for judgment on the pleadings. Defendants move for judgment on the pleadings as to all causes of action in the operative second amended complaint other than the first cause of action, with Plaintiff does not assert against Defendants. Defendants also filed a demurrer to and motion to strike portions of the operative second amended complaint.

TENTATIVE RULING:

Defendants' motion for judgment on the pleadings/non-statutory motion for judgment on the pleadings is GRANTED with leave to amend as to the second, third, fourth, fifth, eighth, and ninth causes of action in the second amended complaint. Defendant's motion is GRANTED without leave to amend as to the sixth and seventh causes of action in the second amended complaint.

Moving party to give notice, unless waived.

DISCUSSION:

Motion for Judgment on the Pleadings/Non-Statutory Motion for Judgment on the Pleadings

Defendants' request for judicial notice in support of the motion for judgment on the pleadings is granted.

A motion for judgment on the pleadings has the same function as a general demurrer, but may be made after the time to demur has expired. (Code Civ. Proc., § 438, subd. (f).) "Like a demurrer, the grounds for the motion [for judgment on the pleadings] must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Civic Partners Stockton, LLC v. Youssefi (2013) 218 Cal.App.4th 1005, 1013.) In ruling on a motion for judgment on the pleadings, "[a]ll allegations in the complaint and matters upon which judicial notice may be taken are assumed to be true." (Rippon v. Bowen (2008) 160 Cal.App.4th 1308, 1313.)

Second cause of action: elder abuse

Plaintiff's second cause of action is for elder abuse. The Elder Abuse and Dependent Adult Civil Protection Act defines an elder as "any person residing in this state, 65 years of age or older." (Welf. & Inst. Code, § 15610.27.) The statute prohibits "[a]buse of an elder or a dependent adult[.]" which is defined as "physical abuse, neglect, financial abuse, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering[.]" (Welf. & Inst. Code, § 15610.07.) Because it is a statutory claim, Plaintiff must allege the cause of action for elder abuse with particularity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.) Plaintiff alleges that his father was a dependent adult, and Defendant "knowingly Withheld, denied, or failed to provide goods or services necessary to avoid physical harm or mental suffering, with recklessness, oppression, or malice." (Second Amended Complaint, p. 4.) Plaintiff fails to allege facts to support these conclusions. Accordingly, Plaintiff fails to state a claim for elder abuse.

Third cause of action: fraud

Plaintiff's third cause of action is for fraud. Plaintiff must allege fraud with particularity. "This means: (1) general pleading of the legal conclusion of fraud is insufficient; and (2) every element of the cause of action for fraud must be alleged in full, factually and specifically, and the policy of liberal construction of pleading will not usually be invoked to sustain a pleading that is defective in any material respect." (Wilhelm v. Pray, Price, Williams & Russell (1986) 186 Cal.App.3d 1324, 1331.) There are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts." (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336, internal quotations and citations omitted.) Here, Plaintiff alleges, "Defendants concealed and misrepresented their actions including rehab [facility] which plaintiff father was a resident. [F]acility intentionally hides dangerous, inadequate, or illegal practices from patients or their families to secure admissions and insurance payments. [¶] Defendants concealed a policy placing profits and fraudulent billings above patient health and safety, which as a result led to harm and abuse to plaintiff[s] father." (Second Amended Complaint, pp. 4-5.) Plaintiff does not allege specific facts to support these conclusory allegations. Plaintiff has not alleged his third cause of action with particularity.

Fourth cause of action: Unruh Civil Rights Act

Plaintiff's fourth cause of action is for conspiracy to violate the Unruh Civil Rights Act, and for violation of the Unruh Civil Rights Act. To state a cause of action under the Unruh Civil Rights Act, Plaintiff must allege that Defendants are business establishments that intentionally denied Plaintiff full and equal accommodations, advantages, facilities, privileges, or services based on Plaintiff's sex, race, color, religion, ancestry, national origin, disability, medical condition, marital status, or sexual orientation. (Civ. Code, § 51, subd. (b).) Plaintiff alleges, "[D]efendants specifically discriminated and incited denial against the decedent by denying equal accommodations, advantages, facilities, privileges, or services. Including denying access to specific therapeutic programs." (Second Amended Complaint, p. 5.) Plaintiff does not allege on what basis Defendants purportedly discriminated against Plaintiff's late father. Plaintiff fails to allege facts to state a claim under the Unruh Civil Rights Act.

Fifth cause of action: Tom Bane Civil Rights Act

Plaintiff's fifth cause of action is under the Tom Bane Civil Rights Act. To state a claim under the Tom Bane Civil Rights Act, Plaintiff must allege that Defendants threatened or committed violent acts to interfere with Plaintiff's exercise of a constitutional or statutory right by intimidation or coercion, and that Plaintiff sustained harm as a result. (*Shoyoye v. County of Los Angeles* (2012) 203 Cal.App.4th 947, 959.) The provisions of the Tom Bane Civil Rights Act "do[] not extend to all ordinary tort actions because its provisions are limited to threats, intimidation, or coercion that interferes with a constitutional or statutory right." (*Venegas v. County of Los Angeles* (2004) 32 Cal.4th 820, 843.) In support of this cause of action, Plaintiff alleges, "Defendants by means of abuse and neglect of decedent created an environment of dependency where for a substantial period the victim and family became dependent and . . . relied on such coercion to withhold complaint to authorities fearing worse treatment of the victim." (Second Amended Complaint, p. 5.) Plaintiff fails to allege that Defendants threatened violence to interfere with Plaintiff's constitutional or statutory rights. Plaintiff fails to allege facts to state a claim under the Tom Bane Civil Rights Act.

Sixth cause of action: public endangerment

Plaintiff's sixth cause of action is for public endangerment. This is not a recognized cause of action. As such, the Court grants the motion for judgment on the pleadings on the sixth cause of action without leave to amend.

Seventh cause of action: unjust enrichment

Plaintiff's seventh cause of action is for unjust enrichment. Unjust enrichment is not a cause of action, but rather a remedy. (*Melchior v. New Line Productions, Inc.* (2003) 106 Cal. App. 4th 779, 794.) The Court grants the motion for judgment on the pleadings on the seventh cause of action without leave to amend.

Eighth cause of action: breach of fiduciary duties

Plaintiff's eighth cause of action is for breach of fiduciary duties. To state a claim for breach of fiduciary duties, Plaintiff must allege facts showing that the parties had a confidential, fiduciary relationship. (*Zumbrun v. Univ. of So. Cal.* (1972) 25 Cal.App.3d 1, 13.) Plaintiff alleges that Defendants "had a fiduciary duty despite not directly representing or associated with plaintiff." (Second Amended Complaint, p. 6.) Plaintiff alleges no facts to support this bare legal conclusion. Plaintiff fails to state a claim for breach of fiduciary duties.

Ninth cause of action: Racketeer Influenced and Corrupt Organizations Act

Plaintiff's ninth cause of action is under the Racketeer Influenced and Corrupt Organizations Act, or RICO. To state a claim under RICO, Plaintiff must allege the conduct of an enterprise that caused injury to Plaintiff's business or property through a pattern of racketeering activity that affects interstate commerce. (*McMartin v. Children's Institute International* (1989) 212 Cal.App.3d 1393, 1406.) Plaintiff alleges that Defendants "committed mail fraud, wire fraud and healthcare fraud over state lines." (Second Amended Complaint, pp. 6-7.) Plaintiff alleges no facts to support this conclusion. Furthermore, Plaintiff does not allege that Plaintiff's business or property sustained damages.

In an abundance of caution, the Court will provide Plaintiff with one final opportunity to amend. (See *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

As the Court grants the motion for judgment on the pleadings, the Court places the demurrer and motion to strike off calendar as moot.

Accordingly, Defendants' motion for judgment on the pleadings/non-statutory motion for judgment on the pleadings is GRANTED with leave to amend as to the second, third, fourth, fifth, eighth, and ninth causes of action in the second amended complaint. Defendant's motion is GRANTED without leave to amend as to the sixth and seventh causes of action in the second amended complaint.

Plaintiff is to file an amended complaint within 10 days.

Moving party to give notice, unless waived.

IT IS SO ORDERED.

Dated: August 27, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: August 27,

2026 TRIAL

DATE: Not set.

CASE: S David Sedaghat v. Jerry Roles, et al.

CASE

NO.: 24STCV27659

MOTION TO

DISMISS/MOTION FOR JUDGMENT ON THE PLEADINGS/NON-STATUTORY MOTION FOR JUDGMENT

ON THE PLEADINGS, OR, IN THE ALTERNATIVE, DEMURRER TO SECOND AMENDED COMPLAINT

MOVING PARTY/PARTIES: Defendants SAVA Seniorcare Administrative

Services, LLC and Sava Seniorcare Administrative and Consulting LLC

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

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Correct Address: Yes

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Served electronically on July 15,

2026 for an original hearing date of December 31, 2026, which was advanced to

this date in the Court's order of July 27, 2026. (July 27, 2026 Minute Order.)

CASE HISTORY:

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October 22, 2024: Complaint filed.

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December 18, 2024: Notice of removal

to federal court filed.

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March 18, 2025: Notice of remand

from federal court filed.

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February 17, 2026: First Amended

Complaint filed.

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May 27, 2026: Second Amended

Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR

PROCEEDINGS:

Plaintiff

S David Sedaghat ("Plaintiff"), as a self-represented litigant, initiated this action

based on the alleged wrongful death of his father while his father was a

resident of a long-term care facility. Defendants

SAVA Seniorcare Administrative Services, LLC and Sava

Seniorcare Administrative and Consulting LLC ("Defendants") caption this motion as a motion to dismiss or motion for

judgment on the pleadings or non-statutory motion for judgment on the pleadings,

or, in the alternative, a demurrer to the second amended complaint. Defendants cite no authority in their notice

of motion under which the Court could grant their motion to dismiss or motion

for judgment on the pleadings. As such,

the Court cannot grant the motion to dismiss or the motion for judgment on the

pleadings. (See Code Civ. Proc., § 1010;

Cal. Rules of Court, rule 3.1110, subd. (a); People v. American Sur. Ins. Co.

(1999) 75 Cal.App.4th 719, 726.) Accordingly,

the Court considers the demurrer, which Defendants properly noticed. Defendants demur to all causes of action in

the operative second amended complaint other than the first cause of action,

with Plaintiff does not assert against Defendants.

TENTATIVE RULING:

Defendants'

demurrer to the second amended complaint is SUSTAINED with leave to amend as to

the second, third, fourth, fifth, eighth, and ninth causes of action in the

second amended complaint. Defendant's

demurrer is SUSTAINED without leave to amend as to the sixth and seventh causes

of action in the second amended complaint.

Moving

party to give notice, unless waived.

DISCUSSION:

Demurrer to Second Amended Complaint

Defendants'

request for judicial notice is granted.

"It is black letter law that a

demurrer tests the legal sufficiency of the allegations in a complaint.”

(Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In

ruling on a demurrer, the court must “liberally construe[]” the allegations of

the complaint. (Code Civ. Proc., § 452.)

“This rule of liberal construction means that the reviewing court draws

inferences favorable to the plaintiff, not the defendant.” (Perez v.

Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Res

judicata

Defendants contend res judicata

bars Plaintiff's claims. “‘Res judicata’

describes the preclusive effect of a final judgment on the merits. Res

judicata, or claim preclusion, prevents relitigation of the same cause of

action in a second suit between the same parties or parties in privity with

them. Collateral estoppel, or issue preclusion, ‘precludes relitigation of

issues argued and decided in prior proceedings.’ [Citation] Under the doctrine

of res judicata, if a plaintiff prevails in an action, the cause is merged into

the judgment and may not be asserted in a subsequent lawsuit; a judgment for

the defendant serves as a bar to further litigation of the same cause of

action.” (Mycogen Corp. v. Monsanto

Co. (2002) 28 Cal.4th 888, 896-897.)

“Res judicata precludes piecemeal litigation by splitting a single cause of action or relitigation of the same cause of action on a different legal theory or for different relief. . . . California's res judicata doctrine is based upon the primary right theory. The primary right theory is a theory of code pleading that has long been followed in California. It provides that a cause of action is comprised of a primary right of the plaintiff, a corresponding primary duty of the defendant, and a wrongful act by the defendant constituting a breach of that duty. The most salient characteristic of a primary right is that it is indivisible: the violation of a single primary right gives rise to but a single cause of action. As far as its content is concerned, the primary right is simply the plaintiff's right to be free from the particular injury suffered. . . . The primary right theory has a fairly narrow field of application. It is invoked most often when a plaintiff attempts to divide a primary right and enforce it in two suits. The theory prevents this result by either of two means: (1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement or (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata.” (Lincoln Property

Co., N.C., Inc. v. Travelers Indem. Co. (2006) 137 Cal.App.4th 905, 912,

internal citations and quotations omitted.)

In *S David Sedaghat. v. SAVA*

Seniorcare Administrative Services, LLC, et al. (Super. Ct. L.A. County, 2023,

No. 23STCV26363), the Court entered judgments in favor of co-Defendants

Jonathan J. Wernick and SSCTOC (Assignment for the Benefit of Creditors) LLC. (See July 30, 2025 and December 22, 2025 Judgments

of Dismissal in *S David Sedaghat. v. SAVA Seniorcare Administrative*

Services, LLC, et al. (Super. Ct. L.A. County, 2023, No. 23STCV26363).) Defendants fail to address how judgments in

favor of other Defendants in *S David Sedaghat. v. SAVA Seniorcare*

Administrative Services, LLC, et al. (Super. Ct. L.A. County, 2023, No.

23STCV26363) bar Plaintiff's claims against Defendants in this action. Accordingly, this argument fails as

unsupported.

Sham

pleading

Defendants argue that the sham

pleading doctrine bars Plaintiff's claims. "Under the sham pleading doctrine,

allegations in an original pleading that rendered it vulnerable to demurrer or

other attack cannot simply be omitted without explanation." (*Hahn v. Mirda* (2007) 147 Cal.App.4th

740, 751.) Defendants argue that Plaintiff

omitted Exhibit A to the original complaint.

The original complaint does not include anything labelled as Exhibit

A. However, Plaintiff did attach a

Notice of Assignment for the Benefit of Creditors dated January 12, 2023 to the

original complaint. It reflects that SSC

Tarzana Operating LP LLC made a general assignment for the benefit of creditors

to co-Defendant SSCTOC (Assignment for the Benefit of Creditors) LLC. Defendants fail to explain how this document

pertains to them. Accordingly,

Defendants' argument that the sham pleading doctrine bars Plaintiff's claims

fails as unsupported.

Second

cause of action: elder abuse

Plaintiff's second cause of action

is for elder abuse. The Elder Abuse and

Dependent Adult Civil Protection Act defines an elder as "any person residing

in this state, 65 years of age or older." (Welf. & Inst. Code, § 15610.27.)

The statute prohibits "[a]buse of an elder or a dependent adult[.]" which is

defined as "physical abuse, neglect, financial abuse, abandonment, isolation,

abduction, or other treatment with resulting physical harm or pain or mental

suffering[.]" (Welf. & Inst. Code, § 15610.07.) Because it is a statutory claim, Plaintiff

must allege the cause of action for elder abuse with particularity. (Covenant Care, Inc. v. Superior Court

(2004) 32 Cal.4th 771, 790.) Plaintiff

alleges that his father was a dependent adult, and Defendant “knowingly

Withheld, denied, or failed to provide goods or services necessary to avoid

physical harm or mental suffering, with recklessness, oppression, or

malice.” (Second Amended Complaint, p.

4.) Plaintiff fails to allege facts to

support these conclusions. Accordingly,

the Court sustains the demurrer to the second cause of action with leave to

amend.

Third

cause of action: fraud

Plaintiff's third cause of action

is for fraud. Plaintiff must allege

fraud with particularity. “This means:

(1) general pleading of the legal conclusion of fraud is insufficient; and (2)

every element of the cause of action for fraud must be alleged in full,

factually and specifically, and the policy of liberal construction of pleading

will not usually be invoked to sustain a pleading that is defective in any

material respect.” (Wilhelm v. Pray,

Price, Williams & Russell (1986) 186 Cal.App.3d 1324, 1331.) There are four circumstances in which

nondisclosure or concealment may constitute actionable fraud: (1) when the

defendant is in a fiduciary relationship with the plaintiff; (2) when the

defendant had exclusive knowledge of material facts not known to the plaintiff;

(3) when the defendant actively conceals a material fact from the plaintiff;

and (4) when the defendant makes partial representations but also suppresses

some material facts.” (LiMandri v.

Judkins (1997) 52 Cal.App.4th 326, 336, internal quotations and citations

omitted.) Here, Plaintiff alleges,

“Defendants concealed and misrepresented their actions including rehab

[facility] which plaintiff father was a resident. [F]acility intentionally hides dangerous,

inadequate, or illegal practices from patients or their families to secure

admissions and insurance payments.

[¶] Defendants concealed a policy

placing profits and fraudulent billings above patient health and safety, which

as a result led to harm and abuse to plaintiff[’s] father.” (Second Amended Complaint, pp. 4-5.) Plaintiff does not allege specific facts to

support these conclusory allegations.

Plaintiff has not alleged his third cause of action with particularity.

Fourth

cause of action: Unruh Civil Rights Act

Plaintiff's fourth cause of action

is for conspiracy to violate the Unruh Civil Rights Act, and for violation of

the Unruh Civil Rights Act. To state a

cause of action under the Unruh Civil Rights Act, Plaintiff must allege that

Defendants are business establishments that intentionally denied Plaintiff full

and equal accommodations, advantages, facilities, privileges, or services based

on Plaintiff's sex, race, color, religion, ancestry, national origin,

disability, medical condition, marital status, or sexual orientation. (Civ.

Code, § 51, subd. (b).) Plaintiff

alleges, "[D]efendants specifically discriminated and incited denial against

the decedent by denying equal accommodations, advantages, facilities,

privileges, or services. Including

denying access to specific therapeutic programs." (Second Amended Complaint, p. 5.) Plaintiff does not allege on what basis

Defendants purportedly discriminated against Plaintiff's late father. Plaintiff fails to allege facts to state a

claim under the Unruh Civil Rights Act.

Fifth

cause of action: Tom Bane Civil Rights Act

Plaintiff's fifth cause of action

is under the Tom Bane Civil Rights Act.

To state a claim under the Tom Bane Civil Rights Act, Plaintiff must

allege that Defendants threatened or committed violent acts to interfere with Plaintiff's exercise of a constitutional or statutory right by intimidation or coercion, and that Plaintiff sustained harm as a result. (Shoyoye v. County of Los Angeles (2012) 203 Cal.App.4th 947, 959.) The provisions of the Tom Bane Civil Rights Act "do[] not extend to all ordinary tort actions because its provisions are limited to threats, intimidation, or coercion that interferes with a constitutional or statutory right." (Venegas v. County of Los Angeles (2004) 32 Cal.4th 820, 843.) In support of this cause of action, Plaintiff alleges, "Defendants by means of abuse and neglect of decedent created an environment of dependency where for a substantial period the victim and family became dependent and . . . relied on such coercion to withhold complaint to authorities fearing worse treatment of the victim." (Second Amended Complaint, p. 5.) Plaintiff fails to allege that Defendants threatened violence to interfere with Plaintiff's constitutional or statutory rights. Plaintiff fails to allege facts to state a claim under the Tom Bane Civil Rights Act.

Sixth

cause of action: public endangerment

Plaintiff's sixth cause of action

is for public endangerment. This is not

a recognized cause of action. As such,

the Court sustains the demurrer to the sixth cause of action without leave to

amend.

Seventh

cause of action: unjust enrichment

Plaintiff's seventh cause of action

is for unjust enrichment. Unjust

enrichment is not a cause of action, but rather a remedy. (*Melchior v. New Line Productions, Inc.*

(2003) 106 Cal. App. 4th 779, 794.) The

Court sustains the demurrer to the seventh cause of action without leave to

amend.

Eighth

cause of action: breach of fiduciary duties

Plaintiff's eighth cause of action

is for breach of fiduciary duties. To state a claim for breach of fiduciary

duties, Plaintiff must allege facts showing that the parties had a

confidential, fiduciary relationship. (*Zumbrun v. Univ. of So. Cal.*

(1972) 25 Cal.App.3d 1, 13.) Plaintiff

alleges that Defendants "had a fiduciary duty despite not directly representing

or associated with plaintiff.” (Second

Amended Complaint, p. 6.) Plaintiff

alleges no facts to support this bare legal conclusion.

Ninth

cause of action: Racketeer Influenced and Corrupt Organizations Act

Plaintiff's ninth cause of action

is under the Racketeer Influenced and Corrupt Organizations Act, or RICO. To state a claim under RICO, Plaintiff must

allege the conduct of an enterprise that caused injury to Plaintiff's business

or property through a pattern of racketeering activity that affects interstate

commerce. (McMartin v. Children's

Institute International (1989) 212 Cal.App.3d 1393, 1406.) Plaintiff alleges that Defendants “committed

mail fraud, wire fraud and healthcare fraud over state lines.” (Second Amended Complaint, pp. 6-7.) Plaintiff alleges no facts to support this

conclusion. Furthermore, Plaintiff does

not allege that Plaintiff's business or property sustained damages.

In an abundance of caution, the

Court will provide Plaintiff with one final opportunity to amend. (See City

of Stockton v. Superior Court (2007) 42 Cal.4th 730, 747.)

Accordingly,

Defendants' demurrer to the second amended complaint is SUSTAINED with leave to

amend as to the second, third, fourth, fifth, eighth, and ninth causes of
action in the second amended complaint.

Defendant's demurrer is SUSTAINED without leave to amend as to the sixth
and seventh causes of action in the second amended complaint.

Plaintiff

is to file an amended complaint within 10 days.

IT

IS SO ORDERED.

Dated: August 27, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by
contacting the courtroom via email at by no later
than 4:00 p.m. the day before the hearing. All interested parties
must be copied on the email. It should be noted that if you submit
on a tentative ruling the court will still conduct a hearing if any party
appears. By submitting on the tentative you have, in essence, waived your right
to be present at the hearing, and you should be aware that the court may not
adopt the tentative, and may issue an order which modifies the tentative ruling
in whole or in part.